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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE,

CARBONE, SMITH & KOYAMA,

and MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**NOTICE OF MOTION AND MOTION
TO STRIKE PLEADING**

(C.C.P. § 435 AND C.C.P. § 436)

DATE: May 22, 2026

TIME: 9:00 a.m.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 **TO ALL PARTIES AND THEIR RESPECTIVE ATTORNEYS OF RECORD:**

2 PLEASE TAKE NOTICE that on May 22, 2026, at 9:00 a.m. or as soon thereafter as the
3 matter may be heard in Department 301 of the above-entitled court, located at 400 McAllister St.,
4 San Francisco, CA, 94102, Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH
5 & KOYAMA, and MICHAEL R. CHAMBERS (collectively “Defendants”) will and hereby move
6 the Court for an order striking the entirety of the First Amended Complaint (“FAC”) of Plaintiff
7 FRANCISCUS DYLAN ROSARIO, filed on or about February 25, 2026, or in the alternative,
8 striking all of Plaintiff’s claimed damages, including attorney’s fees, monetary damages, and all
9 other claimed items of damage, pursuant to C.C.P. § 435 and C.C.P. § 436: The Court should strike
10 the entire FAC, or in the alternative, all the following items of damage from the FAC:

11 **a) Litigation Costs and Economic Injury** (*FAC*, pg. 20: line 7):

- 12 ○ out-of-pocket record, evidence, and process costs caused by the fraud-on-the-
13 court mechanism:
 - 14 ▪ fees paid to obtain reporter’s transcripts, clerk’s transcripts and
15 certified copies;
 - 16 ▪ fees paid for copying and printing, exhibit creation, audio and video
17 transcription, authentication costs, storage media, postage and
18 courier;
 - 19 ▪ fees paid for filing fees, and service fees;
 - 20 ▪ expenses incurred in travel, parking, and mileage for hearings tied
21 to the fraud dispute. (*FAC*, pg. 20: lines 7-11.)¹

22 **b) LOST EARNINGS, AND LOST PRODUCTIVE TIME CAUSED BY FRAUD**
23 (*FAC*, pg. 20: lines 12-17):

- 24 ○ **Fraud-delta time loss and lost earnings:** The value of productive time
25 wrongfully imposed by the fraud-driven extension, segregated from ordinary
26 litigation time. This includes time spent solely because the process was
27 corrupted: emergency foundation work, repeated motions and appearances
28 that would not exist but for the false “non-receipt/unknown provenance”
premise, and record reconstruction.

29 **c) ADDITIONAL MEDICAL, THERAPY, AND PHARMACY EXPENSES** (*FAC*,
30 pg. 20: lines 18-25):

- 31 ○ **Costs temporally tied to documented exacerbations** during the fraud-
32 driven period, including therapy visits, medications, and copays for care
33 necessitated by the fraud-driven litigation strain.

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35 ///

36 _____
37 ¹ Plaintiff’s FAC duplicitously claims in the same page that it does not seek attorney’s fees, reserving these for other
38 proceedings. It is important to note that Plaintiff currently owe’s \$75,000 in attorney’s fees as a result of his failure to
obtain a favorable verdict despite presentation of the evidence which is the subject of this lawsuit.

- Plaintiff alleges emotional distress, humiliation, and physical toll as concrete harms supporting the prejudice showing and why equity should intervene. To the extent Plaintiff seeks monetary relief for such harms, it is limited to objectively billed care (therapy visits, medications, copays) as pleaded in [ADDITIONAL MEDICAL, THERAPY, AND PHARMACY EXPENSES] above.

d) **ANCILLARY EQUITABLE MONETARY RELIEF** (*FAC*, pg. 20: lines 2-6, pg. 23: lines 26-28):

- Ancillary equitable monetary relief incident to that equitable set-aside.
- Ancillary equitable monetary relief, restitutionary in nature, incident to vacatur.

e) **PRAYER FOR RELIEF** (*FAC*, pg. 27: lines 10-26):

- **Vacatur:** That the Court issue an Order vacating and setting aside the Judgment entered in Case No. CGC-21-594102 on April 25, 2025.
- **New Trial:** That the Court order a new trial on the merits of the underlying dispute, allowing for the full presentation of the previously suppressed 911 call admission, bodycam footage, and CAD logs without the procedural and evidentiary barriers created by false or misleading defense-side representations.
- **Equitable Monetary Relief (Ancillary and Restitutionary):** That the Court award equitable monetary relief incident to vacatur, restitutionary in purpose, for losses proximately caused by the fraudulent procurement of the judgment, including: (i) out-of-pocket record, transcript, and evidence costs; (ii) fraud-delta lost time and lost earnings; and (iii) additional medical and therapy expenses for documented exacerbations during the fraud-driven period, in an amount to be proven, against Defendants and each of them.
- **Costs:** That Plaintiff recover allowable costs of suit.

The grounds for striking all items of damages in Plaintiff's FAC are: the claimed damages are irrelevant, false, improper, and not pled in conformity with California law. Furthermore, Plaintiff cannot properly plead his cause of action for fraud. All the allegations in Plaintiff's FAC target Defendant's privileged conduct and communications under Civ. Code § 47(b). Plaintiff lacks standing to sue Defendant—a third party's insurance carrier. Plaintiff is collaterally estopped from seeking recovery on the same damages sought in his underlying jury trial—which he lost. Plaintiff was not the prevailing party at the underlying jury trial and cannot therefore seek costs.

This motion is based upon this notice, upon the Memorandum of Points and Authorities, the Declaration of Tyler J. O'Connell, filed herewith; upon the records and files in this action; upon Defendant's Request for Judicial Notice and the matters appended thereto and upon such further evidence and argument as may be presented prior to or at the time of hearing on the motion.

TENTATIVE RULINGS

A. The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling procedure in civil law and motion and discovery matters. For Real Property Court, compliance with 8.10(B) is required.

B. Parties may obtain a tentative ruling issued by the Law and Motion and Discovery Departments by telephoning (415) 551-4000 or visiting the court's website at <https://sf.courts.ca.gov/> and clicking the online services link. Changes in telephone numbers will appear in the official newspapers.

C. A party who fails to appear at the hearing is deemed to submit to the tentative ruling. However, no party may submit to a tentative ruling that specifies that a hearing is required.

D. Parties who intend to appear at the hearing must give notice to opposing parties and the court promptly, but no later than 4:00 p.m. the day before the hearing unless the tentative ruling has specified that a hearing is required. Notice of contesting a tentative ruling must be provided by sending an email to the court to contestdept301tr@sftc.org or contestdept302tr@sftc.org with a copy to all other parties stating, without argument, the portion(s) of the tentative ruling that the party contests. A party may not argue at the hearing if the opposing party is not so notified and the opposing party does not appear.

E. If no party appears, or if a party does not appear because the opposing party failed to give sufficient notice of intent to argue, then the tentative ruling will be adopted.

F. Tentative rulings are generally available by 3:00 p.m. the day before the hearing. A tentative ruling that does not become available until after 3:00 p.m. is a late tentative ruling. A late tentative ruling will indicate that the ruling is late. If a tentative ruling is late, the parties must appear unless all parties agree to submit to a late tentative ruling in which case the Court will adopt the late tentative ruling pursuant to subsection E above.

G. The prevailing party on a tentative ruling is required to prepare a proposed order repeating verbatim the substantive portion of the tentative ruling and must bring the proposed order to the hearing even if the motion is not opposed or the tentative ruling is not contested. If the prevailing party is appearing at the hearing remotely, the proposed order may be sent to the court

1 by an email to contestdept301tr@sftc.org or contestdept302tr@sftc.org. If the proposed order is for
2 a summary judgment and/or adjudication motion, the proposed order must comply with
3 requirements of CCP § 437c(g). If the proposed order is for a motion, such as a motion to withdraw
4 as counsel, where there is a Judicial Council form order, the prevailing party should complete the
5 Judicial Council form as the proposed order.

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7 Dated: April 22, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

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9
10 By _____
11 Chad S. Tapp
12 Tyler J. O'Connell
13 Attorneys for Defendants,
14 CSAA INSURANCE EXCHANGE,
15 CARBONE, SMITH & KOYAMA, and
16 MICHAEL R. CHAMBERS
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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document:

7 **NOTICE OF MOTION AND MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 9 the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
10	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 11 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 12 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 13 party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
14	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for 15 collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
16	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

17 Addressed as follows:

18 **PLAINTIFF, IN PRO PER**

19 Franciscus Dylan Rosario
20 7624 Melody Drive
Rohnert Park, CA 94928
21 soltrinox@gmail.com

22
23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on April 22, 2026.

25 **Monique Schubert**
26 Monique Schubert
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